

SENATE No. 1023

The Commonwealth of Massachusetts

PRESENTED BY:

Rebecca L. Rausch

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the creation of a chapter 40B commission.

PETITION OF:

NAME:

Rebecca L. Rausch

DISTRICT/ADDRESS:

Norfolk, Worcester and Middlesex

SENATE No. 1023

By Ms. Rausch, a petition (accompanied by bill, Senate, No. 1023) of Rebecca L. Rausch for legislation to create a chapter 40B commission to investigate and study the issuance of permits and approvals for housing projects. Housing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the creation of a chapter 40B commission.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 (a) There shall be a special legislative commission to investigate and study the issuance
2 of permits and approvals for housing projects under section 21 of chapter 40B of the General
3 Laws. The commission shall examine the use of such permits and approvals and their impact on
4 the environment and abutting properties.

5 (b) The commission shall consist of the following members: the secretary of the
6 executive office of housing and livable communities or their designee, who shall serve as chair; 1
7 member appointed by the governor; 1 member appointed by the senate president; 1 member
8 appointed by the speaker of the house; 1 member appointed by the senate minority leader; 1
9 member appointed by the house minority leader; 1 member appointed by the attorney general;
10 the president of the Environmental League of Massachusetts, or her designee; the executive
11 director of the Massachusetts law reform institute, or her designee; the executive director of the
12 Massachusetts area planning council, or his designee; the president of the conservation law

13 foundation, or his designee; the executive director of the Massachusetts municipal association, or
14 his designee; and up to 3 additional members to be added by the chair, at their discretion, to
15 provide expertise on housing or environmental policy.

16 (c) Not later than March 6, 2026, the commission shall submit its report and
17 recommendations for proposed legislation to the senate and house committees on ways and
18 means, the chairs of the joint committee on housing, and the clerks of the house and senate. The
19 executive office of housing and livable communities shall publish the report on its website.